

DEPARTMENT OF VETERANS AFFAIRS

**Justification and Approval (J&A)
For
Other Than Full and Open Competition (>SAT)**

Acquisition Plan Action ID: 36C255-25-AP-1772

1. Contracting Activity:

Department of Veteran Affairs, Network Contracting Office 15, located at 3450 4th St Trafficway, Leavenworth, KS, in support of Eastern Kansas VA Health Care System at Colmery-O'Neil VA Medical Center 2200 Gage Blvd Topeka, KS 66622-0001 and the Dwight D. Eisenhower VA Medical Center at 4101 S. 4th St. Leavenworth KS 66048-5014

2237: 589-25-3-3102-0011: \$262,000.00
589-25-3-3102-0012: \$308,000.00

2. Nature and/or Description of the Action Being Processed:

This Justification and Approval (J&A) is submitted to request approval for a sole source bridge contract with Secure Transport to ensure uninterrupted transportation services during the transition period to award a new contract. The bridge contract is necessary to maintain critical services and prevent any disruption to provide special transportation services.

3. Description of Supplies/Services Required to Meet the Agency's Needs:

Contractor shall provide medical transportation services seven (7) days per week (including holidays), twenty-four (24) hours per day, three hundred sixty-five (365) days per year. The majority of requests for service will be between the hours of 6:00 a.m. and 6:00 p.m. Monday through Friday. The contractor shall provide the VA Medical Center with the method of contacting the Contractor on a twenty-four (24) hour per day basis.

Contractor shall provide "through the door" assisted service for all patients to and from their designated appointments. Patients shall be picked up on the ward, in their homes, in the clinics, or at other areas designated by the VA and taken to the authorized destination or appointment. All patients shall be attended by an authorized responsible party at all times. Assistance in maneuvering stairs and other barriers shall be provided by the driver and/or authorized attendant when necessary.

4. Statutory Authority Permitting Other than Full and Open Competition:

- () (1) Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements per 41 USC §3304(a)(1) as implemented by FAR 6.302-1;
(X) (2) Unusual and Compelling Urgency per 41 USC §3304(a)(2) as implemented by FAR 6.302-2;
() (3) Industrial Mobilization, Engineering, Developmental or Research Capability

- or Expert Services per 41 USC §3304(a)(3) as implemented by FAR 6.302-3;
() (4) International Agreement per 41 USC §3304(a)(4) as implemented by FAR 6.302-4
() (5) Authorized or Required by Statute per 41 USC §3304(a)(5) as implemented by FAR 6.302-5;
() (6) National Security per 41 USC §3304(a)(6) as implemented by FAR 6.302-6;
() (7) Public Interest per 41 USC §3304(a)(7) as implemented by FAR 6.302-7;

5. Demonstration that the Contractor's Unique Qualifications or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):

Due to loss of key personnel at EKHCS transportation office, it was determined by the Contracting Officer and the requiring station that the current solicitation should be terminated and resolicited.

This Bridge contract will provide a temporary solution to continue receiving essential transportation services until the new contract is awarded.

6. Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable:

Market research has been conducted to assess the availability of all sources to provide the required transportation services. The research has determined that there are other qualified contractors with the necessary expertise, experience, and capacity to perform the required services.

The original solicitation was an 100% SDVOSB as per policies and regulations. The next solicitation is anticipated to be 100% SDVOSB as well.

7. Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:

A cost and price analysis has been conducted to ensure that the proposed bridge contract is fair and reasonable. The analysis has determined that the proposed pricing is consistent with the previous contract and aligns with market rates for similar services.

8. Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:

In order to avoid the above-mentioned situation additional market research is needed that the requested action is the best course of action. The CO will continue to work with the Project Manager during the bridge contract's period of performance to ensure proper market research is conducted.

9. Any Other Facts Supporting the Use of Other than Full and Open Competition:

Using open competition could result in delays that could negatively impact the facilities

transportation operations negatively affecting Veterans care.

10. Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:

Secure Transport
MedSpire
Imbserv
Central Valley Medical Transport
Collaborating Techs LLC

11. A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:

Market research will be conducted to identify all potential sources for this service. The agency can review specifications and the statements of requirement to ensure they are not unnecessarily restrictive or need more detailed. By removing unnecessary restrictions or providing more specific information, the CO can encourage a broader range of vendors to compete for this acquisition.

12. Requirements Certification: I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

13. Approvals in accordance with the [VHAPM Part 806.3 OFOC SOP](#):

- a. **Contracting Officer Certification (required):** I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

Steve Parrott
Contracting Officer
NCO15

Date